

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS AND A
COMMISSION ON PROFESSIONAL COMPETENCE FOR THE
GARDEN GROVE UNIFIED SCHOOL DISTRICT
STATE OF CALIFORNIA**

In the Matter of:

ANTHONY MAYTORENA,

A Permanent Certificated Employee,

Respondent.

OAH No. 2024100875

DECISION

A Commission on Professional Competence for the Garden Grove Unified School District (Commission) heard this matter on March 24 through 26, 2025, in Garden Grove, California. The Commission consisted of Sandra Fink; Brandon Futagaki; and Harden Sooper, Administrative Law Judge (ALJ), Office of Administrative Hearings (OAH), State of California.

Jacquelyn T. Morenz and Anthony P. De Marco, Attorneys at Law, represented the Garden Grove Unified School District (District).

Shawn E. Cowles, Attorney at Law, represented respondent Anthony Maytorena, who was present at the hearing.

The Commission received testimony and documentary evidence. The record closed and the matter was submitted for decision at the conclusion of the hearing.

The Commission considered the matter in executive session. After due consideration of the entire record, the Commission makes the following factual findings, legal conclusions, and order.

To protect their privacy, students mentioned in this Decision are identified by their initials.

On June 19, 2025, on his own motion, the ALJ issued a protective order sealing Exhibits 7, H, I, J, N, U, and V because they contain confidential material.

FACTUAL FINDINGS

Parties and Jurisdiction

1. At all relevant times, respondent was a permanent certificated employee of the District, assigned as a physical education (PE) teacher at McGarvin Intermediate School (McGarvin).

2. On July 17, 2024, Jason Bevacqua, in his official capacity as the District's Assistant Superintendent for Personnel Services, filed a Statement of Charges against respondent.

3. In a Notice of Intent to Suspend dated September 26, 2024, the District notified respondent it intended to suspend him without pay for 30 days based upon the allegations within the Statement of Charges.

4. Respondent timely filed a Request for Hearing and Notice of Defense, dated October 15, 2024.

Background and Investigation

5. On March 1, 2024, McGarvin Principal William Gates received an anonymous complaint filed through an online system called StopIt. The complaint alleged respondent engaged in inappropriate behavior involving student K.N. during a PE class on February 29, 2024.

6. The same day, Principal Gates initiated an investigation regarding the allegations against respondent. He interviewed K.N. and four or five other student witnesses. He also directed the interviewed students to prepare written statements about the incident.

7. Principal Gates reviewed video surveillance footage depicting an incident during the February 29, 2024 PE class involving K.N. He directed McGarvin Information Technology personnel to download and preserve the footage and he forwarded the footage to Mr. Bevacqua, the District's Assistant Superintendent for Personnel Services.

8. Mr. Bevacqua notified Jesus Vazquez, the District's Director of Personnel, who initiated his own investigation. Mr. Vazquez reviewed the video surveillance footage, interviewed respondent, and interviewed student witnesses. He also reported the incident to both Child Protective Services and the Westminster Police Department. Westminster Police Officer Gabriela Mora, a School Resource Officer assigned to McGarvin, investigated and concluded no crime occurred.

February 29, 2024 Swatting Incident

9. During PE class on February 29, 2024, respondent asked student K.N. to come to the front of the class to demonstrate “swatting.” There were between 50 and 60 eighth grade students in the class. While her classmates remained seated on the blacktop, K.N. stood in front of the class and as instructed by respondent, placed her hands on the rim of a wheeled trash bin filled with lacrosse sticks. K.N. testified respondent instructed her to “push forward” on the trash bin. Not understanding the direction, K.N. both pushed her hands forward and walked forward simultaneously. Respondent further instructed K.N. to keep her feet still while pushing the bin forward. K.N. complied with respondent’s instruction, describing her body’s position as “like a 90-degree angle.” She was facing away from respondent and could not see what happened while respondent was behind her. K.N. remained in the position for a few seconds before respondent told her to return to her seat on the blacktop. As she did so, K.N. heard a few classmates giggling but did not understand why. Once other students told K.N. respondent “did a hitting gesture to [her] butt,” she felt “disgusted and uncomfortable.” K.N. testified she subsequently felt afraid of respondent because she “didn’t know that teachers had the power to do such an inappropriate act.”

10. K.N.’s testimony was consistent with her written statement dated March 1, 2024, and with her interview with Mr. Vazquez conducted on March 4, 2024. In her written statement, K.N. stated respondent requested a volunteer from the class to demonstrate swatting. Among other questions, respondent asked the class whether the volunteer should be male or female, or Asian or non-Asian. K.N. told Mr. Vazquez respondent asked her to participate in the demonstration after no student volunteered to participate, and that she felt humiliated once another student told her the demonstration looked like respondent was spanking her. According to Mr. Vazquez,

K.N. stated the lacrosse stick touched her foot at some point during the incident but she could not remember which foot. In her testimony at the hearing, K.N. stated she did not remember telling Mr. Vazquez the stick ever touched her. After describing the incident and how she felt, K.N. sobbed for about 15 minutes before Mr. Vazquez decided to end the interview.

11. K.N.'s testimony was consistent with the testimony of two additional student witnesses, D.T. and I.C. Both D.T. and I.C. testified that during their February 29, 2024 PE class, respondent discussed swatting as a form of discipline used in the past. Respondent chose K.N. to demonstrate swatting in front of the class. D.T. and I.C. stated respondent made the motion of "swatting" a lacrosse stick toward K.N. while she was bent over on the trash bin, but did not make contact with K.N.'s body. D.T. testified he felt "weirded out" by respondent describing a form of discipline no longer allowed and picking a student to demonstrate it.

12. All three witnesses' testimony was consistent with video surveillance footage of the incident. The video footage depicts K.N. walking to the front of the class and placing her hands on a trash bin filled with lacrosse sticks. K.N. first walked forward while pushing the trash bin. K.N. then repositioned herself such that she held the rim of the trash bin with her back facing respondent. She pushed the bin forward while keeping her feet still, such that she was bent over at the torso with her upper body facing the ground. It is unclear from the video whether K.N.'s body was at a full 90-degree angle. K.N. remained in the same position for several seconds and respondent swung the lacrosse stick once toward K.N.'s bottom without striking K.N. Respondent patted K.N. on the shoulder and she returned to her seat on the blacktop while other students applauded her. Once K.N. sat down, respondent swung the

lacrosse stick once at the trash bin, striking the bin. The footage does not include any audio.

Respondent's Statements

13. Mr. Vazquez testified that when he interviewed respondent on March 1, 2024, respondent admitted demonstrating swatting with a female student in his PE class, but denied swinging a lacrosse stick toward the student. He asserted he held the lacrosse stick by his shoulder during the entire incident. He also denied asking K.N. to bend over the trash bin and denied touching K.N. During the interview, respondent demonstrated how the student was positioned over the trash bin by placing his hands on a wall and bending over slightly. Based upon the March 1, 2024 interview, Mr. Vazquez concluded respondent did not show any remorse for his actions.

14. In his testimony at the hearing, respondent described the swatting incident. He explained he knew K.N. because she worked as an assistant in the McGarvin front office and he viewed her as a leader in the class and one of the top students. He denied choosing her because she was female and Asian; he explained 85 or 90 percent of students at McGarvin were Asian. Respondent asserted he did not force K.N. to participate in the demonstration, but conceded "any student will say yes if [a teacher] ask[s]." He further claimed he asked K.N. to reposition herself to avoid having her backside facing the class; he did not want to embarrass her and was instead attempting to protect her. He denied asking K.N. to bend over the trash bin, stating he could not have asked K.N. to bend over the bin because lacrosse sticks were protruding from the bin. He explained he moved the lacrosse stick toward K.N. but kept the stick 12 to 18 inches away from K.N. to avoid her accidentally backing into the stick. He testified he was just "joking around" and "had no idea" K.N. would be

embarrassed by the incident. In retrospect, he regrets K.N. was embarrassed and he lamented that he never had an opportunity to explain himself and apologize to K.N.

15. Respondent asserted he was "100 percent honest" in his March 1, 2024 interview with Mr. Vazquez. He knew the incident was captured on video surveillance footage, noting he is "not an idiot." He disputed Mr. Vazquez's conclusion he was not remorseful. He asserted at the time of the interview, he did not know K.N. felt embarrassed by the demonstration. Respondent emphasized his own stress and anxiety over the District investigation, the police investigation, and being unable to work for 11 months while on paid administrative leave.

16. When asked on cross-examination about whether he told Mr. Vazquez he held the lacrosse stick by his shoulder during the entire incident, respondent testified he did not remember holding the lacrosse stick by his shoulder, nor did he remember telling Mr. Vazquez he did so. He admitted telling Mr. Vazquez he did not swing the lacrosse stick. He asserted he was instead "lining up" the lacrosse stick akin to lining up a golf club to a golf ball on a tee, preparing to swing. He testified he believed a swing "is what you do to a ball when you hit it." He denied touching K.N. with the lacrosse stick.

17. Also present during the March 1, 2024 interview with Mr. Vazquez was Bridget Holdermann, then-president of the Garden Grove Education Association, the union representing teachers at the District. Ms. Holdermann is also respondent's high school classmate, friend of over 40 years, and teaching colleague for over 30 years. Ms. Holdermann's testimony about the March 1, 2024 interview was consistent with respondent's testimony. She did not recall respondent stating he held the lacrosse stick by his shoulder, but she did recall respondent stated he did not swing the lacrosse stick during the incident. Using the same analogy as respondent, Ms.

Holdermann asserted respondent made a motion akin to a golfer lining up their shot; in her opinion, a swing requires an intent to hit something. Even a practice swing requires an “intent for follow through.” Mr. Vazquez testified Ms. Holdermann told him in a private conversation during the hearing but outside the Commission’s presence that she was loyal to the District but also loyal to her friend, meaning respondent.

Rehabilitation and Mitigation Evidence

18. Respondent first became a teacher at the District in 1995 and was a PE teacher at McGarvin for over 20 years. He taught over 10,000 students during his years at McGarvin. In February 2025, respondent returned to teach for the District at Bell Intermediate School.

19. Respondent submitted seven performance evaluations from his time at McGarvin, dated between 2003 and 2019. Respondent received satisfactory performance ratings on each evaluation. Respondent has no prior discipline imposed by the District.

20. In her testimony, Ms. Holdermann vouched for respondent’s character and teaching skill. Ms. Holdermann has never witnessed respondent disrespecting or embarrassing a student. She would trust respondent with her own child. Ms. Holdermann noted respondent often uses humor as a tool to engage with students. Ms. Holdermann was aware of the allegations against respondent, given she was present for his interview with Mr. Vazquez and watched the video footage of the incident.

21. Mark Foster, who taught PE with respondent at McGarvin for 20 years, testified and vouched for respondent’s character and teaching skill. Mr. Foster described numerous positive interactions he had observed between respondent and

his students. Mr. Foster had never observed respondent embarrass a student. Mr. Foster was familiar with the allegations against respondent but believed respondent would not engage in the alleged behavior. Mr. Foster testified that during his own teaching career, he would not have demonstrated swatting in front of a PE class, nor called a student to the front of the class and ask them to bend over.

22. Melanie Whitney, respondent's former student who is currently a college professor, testified and vouched for respondent's character and teaching skill. Ms. Whitney cited respondent's dedication to his family and students; she acknowledged respondent used humor to connect with students but never saw him embarrass or disrespect a student. Ms. Whitney was aware of the allegations against respondent and believed the allegations stemmed from a joke taken out of context.

23. Janet Fettig, who taught PE at McGarvin for 31 years, including 20 years alongside respondent, testified and vouched for respondent's character and teaching skill. She described his dedication to the PE program, his students, and his family. Respondent ran afterschool programs and lunchtime programs outside his normal working hours. Ms. Fettig was aware of the allegations against respondent; she testified she never demonstrated corporal punishment as a PE teacher. On cross-examination, when shown the video footage of the February 29, 2024 incident, Ms. Fettig testified she would describe respondent's actions as "swinging a lacrosse stick at [K.N.'s] back."

24. Respondent submitted two character letters: one from Brian Greene, a lifelong friend; and one from Susan Duquesnel, a longtime colleague. Both authors vouched for respondent's character. Ms. Duquesnel also vouched for respondent's teaching skill. The evidence did not disclose whether either author was aware of the allegations against respondent.

25. Respondent also submitted a letter of gratitude from a former student, G.N. Respondent testified G.N. was his student about 10 years ago. He explained he formed a bond with G.N. and he felt he could have a “real conversation with girls at this age,” meaning middle school, because they are more mature than boys. He felt a special connection with middle school-aged girls, but in a “weird, father way” rather than a “creepy” way. Respondent gave G.N. a gift card as a middle school graduation gift. He explained G.N. had a difficult relationship with her mother and at one point, asked if respondent would adopt her.

Analysis

26. The evidence proved respondent demonstrated swatting with K.N. in front of his PE class on February 29, 2024. Respondent admitted he did so and the incident was captured on video surveillance footage. Respondent asked K.N. to come to the front of the class and instructed her to position herself such that her torso was almost parallel or parallel to the ground while she held onto a trash bin. Respondent stood behind K.N. and used a lacrosse stick to make a spanking gesture toward K.N.’s bottom without contacting K.N. K.N.’s testimony she felt embarrassed, afraid, and humiliated was credible.

27. The evidence proved respondent was dishonest during his March 1, 2024 interview with Mr. Vazquez. Mr. Vazquez, respondent, and Ms. Holdermann all testified respondent told Mr. Vazquez he did not swing the lacrosse stick toward K.N. The video surveillance footage depicts respondent doing so, and respondent’s explanation that he did not consider the motion a “swing” was not credible. One can swing an object without any intent to strike something. Once K.N. sat down after the demonstration, respondent made the same swinging motion toward the trash bin, striking the bin. Both motions were swings; respondent simply stopped before striking K.N.

Respondent's own character witness, Ms. Fettig, described the motion toward K.N. as a "swing." Moreover, respondent told Mr. Vazquez he held the lacrosse stick by his shoulder throughout the incident, which was untrue. Respondent's denial he asked K.N. to lean over the trash bin was likewise untrue. Whether described as "leaning" or "bending" over, respondent directed K.N. to place her hands on the trash bin and position herself such that her bottom was facing respondent and her torso was parallel or almost parallel to the ground. Respondent's assertion he interpreted the question to mean whether he asked K.N. to position her body on top of the trash can, over the lacrosse sticks, was not credible.

28. The evidence did not prove respondent was dishonest when he stated to Mr. Vazquez he did not touch K.N. He did not contact K.N. with the lacrosse stick during the swatting demonstration. To the extent there was incidental contact between the lacrosse stick and K.N.'s foot, it is reasonable to conclude respondent was unaware of such contact and/or did not interpret Mr. Vazquez's question as including such incidental contact. Although respondent did touch K.N.'s shoulder after the demonstration, it was likewise reasonable for respondent to assume Mr. Vazquez was asking about physical contact during the demonstration, not patting K.N.'s shoulder afterward. The exact context of Mr. Vazquez's questions is unknown because he did not record the interview.

LEGAL CONCLUSIONS

Burden and Standard of Proof

1. The District has the burden of proving cause for discipline by a preponderance of the evidence. (*Gardner v. Com. on Prof. Competence* (1985) 164

Cal.App.3d 1035, 1038-1040.) Preponderance of the evidence means evidence that has more convincing force than that opposed to it. (*People ex rel. Brown v. Tri-Union Seafoods, LLC* (2009) 171 Cal.App.4th 1549, 1567.)

Applicable Law

2. The District may suspend a permanent employee for immoral conduct, dishonesty, evident unfitness for service, or persistent violation of or refusal to obey school laws or District regulations. (Ed. Code, § 44932, subds. (a)(1), (a)(4), (a)(6), (a)(8).)

Cause for Suspension

IMMORAL CONDUCT

3. "Immoral conduct" is that which is hostile to the welfare of the general public and contrary to good morals. It includes conduct inconsistent with rectitude, or indicative of corruption, indecency, depravity, and dissoluteness. Immoral conduct is sometimes considered synonymous with "dishonesty" or a high degree of unfairness. Or, it can be conduct that is willful, flagrant, or shameless, conduct showing moral indifference to the opinions of respectable members of the community, and an inconsiderate attitude toward good order and the public welfare. (*Bd. of Education of the S.F. Unified School Dist. v. Weiland* (1960) 179 Cal. App.2d 808, 811.)

4. Immoral conduct also "must be considered in conjunction with the unique position of public school teachers, upon whom are imposed 'responsibilities and limitations on freedom of action which do not exist in regard to other callings.'" (*San Diego Unified School Dist. v. Com. on Prof. Competence* (2011) 194 Cal.App.4th 1454, 1466.) "Thus, the term must be 'considered in the context in which the Legislature considered it, as conduct which is hostile to the welfare of the general

public . . . more specifically in this case, conduct which is hostile to the welfare of the school community.'" (*Crawford v. Com. on Prof. Competence* (2020) 53 Cal.App.5th 327, 337, quoting *Morrison v. State Bd. of Education* (1969) (*Morrison*) 1 Cal.3d 214, 224.)

5. Complainant proved by a preponderance of the evidence respondent's swatting demonstration with K.N. constituted immoral conduct. Respondent's misconduct was indecent; indicative of an inconsiderate attitude toward good order and the public welfare, specifically the welfare of the school community; and was hostile to the welfare of the McGarvin school community. At best, respondent chose to disregard K.N.'s dignity for the sake of making a joke. He acknowledged that a student, when asked by a teacher to perform a task, will feel obligated to comply. He further acknowledged that the demonstration was potentially embarrassing for K.N., testifying he repositioned K.N. such that her bottom was not directly facing the class to avoid embarrassing her. Respondent conducted the demonstration despite knowing K.N. would feel obligated to comply and despite knowing that the demonstration could cause K.N. embarrassment.

DISHONESTY

6. Complainant proved by a preponderance of the evidence respondent was dishonest during his March 1, 2024 interview with Mr. Vazquez, as set forth in Factual Finding 27.

EVIDENT UNFITNESS FOR SERVICE

7. "Evident unfitness for service" means "clearly not fit, not adapted to or unsuitable for teaching, ordinarily by reason of temperamental defects or inadequacies. . . . [The term] connotes a fixed character trait, presumably not

remediable merely on receipt of notice that one's conduct fails to meet the expectations of the employing school district." (*Woodland J. Unified School Dist. v. Com. on Prof. Competence* (1992) 2 Cal.App.4th 1429, 1444.)

8. Complainant did not prove by a preponderance of the evidence respondent's misconduct demonstrated an evident unfitness for service. Although respondent's misconduct involving K.N. was serious, complainant offered no evidence of prior discipline for other, similar misconduct. The evidence did not prove respondent is clearly not fit to teach by reason of a fixed character trait. Cause therefore does not exist to suspend respondent for evident unfitness for service, pursuant to Education Code section 44932, subdivision (a)(6).

PERSISTENT VIOLATION OF OR REFUSAL TO OBEY SCHOOL LAWS OR DISTRICT REGULATIONS

9. To suspend a teacher under Education Code section 44932, subdivision (a)(8), for violations of law or school rules, the violations must be either "persistent" or "motivated by an attitude of continuous insubordination." (*Governing Bd. of Oakdale Union School Dist. v. Seaman* (1972) (*Seaman*) 28 Cal.App.3d 77, 81.) The word "persistent" has been interpreted to mean "stubborn" or "continuing or constant." (*San Dieguito Union High School Dist. v. Com. on Prof. Competence* (1985) 174 Cal.App.3d 1176, 1183; *Seaman*, 28 Cal.App.3d at p. 82) Additionally, a single violation of a school board's rules is insufficient cause for discipline; it is the persistent disregard of school rules that the law is designed to regulate. (*Id.* at p. 84.)

10. Complainant did not prove by a preponderance of the evidence respondent engaged in persistent violation of or refusal to obey school laws or District regulations. The swatting demonstration appeared to be an isolated incident.

Respondent's subsequent dishonesty with Mr. Vazquez, although a separate violation, was related to the same swatting demonstration. Respondent's misconduct was not continuing or constant. Cause therefore does not exist to suspend respondent for persistent violation of or refusal to obey school laws or District regulations, pursuant to Education Code section 44932, subdivision (a)(8).

Fitness to Teach

11. In order to suspend a teacher for immoral conduct or dishonesty, the teacher's conduct must indicate the teacher is unfit to teach. (*Morrison, supra*, 1 Cal.3d 214 [immoral conduct must indicate an unfitness to teach]; *Fontana Unified School Dist. v. Burman* (1988) 45 Cal.3d 208, 220, fn. 12 [dishonesty must also indicate a teacher's unfitness to teach].)

12. The Commission has broad discretion to determine what constitutes unfitness to teach. (*Cal. Teachers Assn v. State of Cal.* (1999) 20 Cal.4th 327.)

13. As set forth in *Morrison*, a teacher's conduct cannot be abstractly characterized as "immoral," thus warranting discipline, "unless that conduct indicates that [respondent] is unfit to teach." (*Morrison, supra*, 1 Cal.3d at p. 229.) *Morrison* enumerates eight criteria for analysis of whether a teacher is unfit to teach. Not all *Morrison* factors must be met for the *Morrison* test to be satisfied. (*Governing Bd. v. Haar* (1994) 28 Cal.App.4th 369.) It is sufficient when the most pertinent *Morrison* factors have been considered. (*West Valley-Mission Community College Dist. v. Concepcion* (1993) 16 Cal.App.4th 1766, 1777.) Moreover, the *Morrison* analysis need not be conducted on each individual fact established, but rather can be applied to the accumulated facts established collectively. (*Woodland J. Unified School Dist., supra*, 2 Cal.App.4th at p. 1457.)

14. The *Morrison* factors apply to respondent's case as discussed below.

THE LIKELIHOOD THAT THE CONDUCT MAY HAVE ADVERSELY AFFECTED STUDENTS, FELLOW TEACHERS, OR THE EDUCATIONAL COMMUNITY, AND THE DEGREE OF SUCH ADVERSITY ANTICIPATED

15. Respondent's misconduct adversely affected K.N., causing her to feel uncomfortable, afraid, and humiliated. A student witness, D.T., also stated he was "weirded out," or uncomfortable, because of respondent's misconduct. K.N. experienced significant adversity, such that she sobbed for about 15 minutes when interviewed by Mr. Vazquez several days later.

THE PROXIMITY OR REMOTENESS IN TIME OF THE CONDUCT

16. Respondent's misconduct involving K.N. occurred recently, approximately 15 months ago, during the 2023–2024 school year.

THE TYPE OF CREDENTIAL HELD BY THE PERSON INVOLVED

17. Respondent's credential authorizes him to teach students in grades 12 and below, which encompasses an impressionable population of students. In *Broney v. Cal. Com. on Teacher Credentialing* (2010) 184 Cal.App.4th 462, the court found "[G]iven the impressionable nature of elementary school students, and their need for appropriate adult role models, this factor weighs in favor of finding of unfitness to teach." (*Broney, supra*, 184 Cal.App.4th at p. 477.) Although respondent was not teaching elementary school students at the time of his misconduct, his credential allows him to do so.

THE EXTENUATING OR AGGRAVATING CIRCUMSTANCES SURROUNDING THE CONDUCT

18. Extenuating circumstances surrounding respondent's misconduct include that there was no evidence of a pattern of similar misconduct. Aggravating circumstances include that respondent's misconduct occurred in front of a class of between 50 and 60 students and caused K.N. significant discomfort and embarrassment. Moreover, according to respondent's own testimony, he was aware the demonstration could cause K.N. embarrassment.

THE PRAISEWORTHINESS OR BLAMEWORTHINESS OF THE MOTIVES RESULTING IN THE CONDUCT

19. Respondent asserted he did not intend to embarrass K.N. and elected to demonstrate swatting because he uses humor to connect with his students. However, even if true, an attempt at humor at the expense of a student is not acceptable conduct by a teacher. There was no reason for respondent to discuss swatting during his PE class, let alone use a student to demonstrate it in front of the class. When later interviewed by Mr. Vazquez, respondent had a motive to be dishonest to avoid accountability for his misconduct involving K.N.

THE LIKELIHOOD OF THE RECURRENCE OF THE QUESTIONED CONDUCT

20. Respondent expressed regret that K.N. felt embarrassed by the swatting demonstration, but he did not express a full understanding of the inappropriateness of his misconduct. He maintained that he was simply "joking around." As such, there is some likelihood of recurrence of similar misconduct. However, there was no evidence

respondent engaged in a pattern of misconduct during his lengthy career at the District.

THE EXTENT TO WHICH DISCIPLINARY ACTION MAY INFLICT AN ADVERSE IMPACT OR CHILLING EFFECT UPON THE CONSTITUTIONAL RIGHTS OF THE PERSON INVOLVED, OR OTHER CERTIFIED PERSONS

21. The outcome of this case will have no chilling effect on credentialed teachers exercising their constitutional rights.

THE PUBLICITY OR NOTORIETY GIVEN TO THE CONDUCT

22. An important element of this factor is whether notoriety from misconduct would impair future on-campus relationships. (*San Diego Unified School Dist. v. Com. on Prof. Competence* (2011) 194 Cal.App.4th 1454, 1463.) In February 2025, the District permitted respondent to teach at another middle school in the District. There is no evidence his misconduct negatively affected others at his current assignment.

OVERALL CONCLUSION

23. Respondent's misconduct is related to his fitness and ability to effectively teach.

Disposition

24. Respondent engaged in immoral and dishonest conduct related to his fitness and ability to effectively teach. Cause therefore exists to suspend respondent, pursuant to Education Code section 44932, subdivisions (a)(1) and (a)(4). Respondent presented some mitigation evidence, such as character witnesses, his history of

satisfactory performance evaluations at McGarvin, and his lack of prior discipline. However, the District's proposed 30-day unpaid suspension is nonetheless warranted by the severity of respondent's misconduct.

ORDER

Respondent shall serve a 30-day unpaid suspension beginning on a date designated by the District.

DATE: 06/24/2025



Sandra M Fink (Jun 24, 2025 11:17 PDT)

SANDRA FINK

Commission Member

Commission on Professional Competence

DATE: 06/24/2025



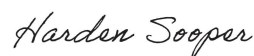
BFUTAGAKI@HBUHSD.EDU (Jun 24, 2025 14:04 PDT)

BRANDON FUTAGAKI

Commission Member

Commission on Professional Competence

DATE: 06/24/2025



HARDEN SOOPER

Administrative Law Judge

Office of Administrative Hearings